

23NWCV00762 23NWCV00762

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C09%2F16%2F2026

Source SHA-256: 658288a5d02ee0ed48e704e7be41f9cc80f0d32d90079fa711b58cc3f7e0a51b

Case Number: 23NWCV00762 Hearing Date: September 16, 2026 Dept: D

MELBA CASTILLO V. AVMGH SIX-THUNDERBIRD VILLA LIMITED, et al.

CASE NO.: 23NWCV00762

HEARING: September 16,
2026

TENTATIVE ORDER

Petitioner Yazmin Catalina

Ortega Peralta's petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability Claimant Jeanette Selena Ortega Peralta is CONTINUED to November 20, 2026, at 9:30am.

Petitioner Yazmin Catalina Ortega

Peralta (Petitioner) brings this petition as the Guardian ad litem of the minor Jeanette Selena Ortega Peralta (Claimant).

Legal Standard

Compromises of disputed

claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or

covenant. (California Rules of Court
(CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use "a reasonable fee standard" when approving and allowing the amount of attorneys' fees payable from money to be paid for the benefit of a minor and requires that courts "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor contemplated that the attorneys' fee would be affected by later events." CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Discussion

General Requirements

Petitioner has submitted a Judicial Council form MC-350 on behalf of Claimant, signed by Petitioner and a Proposed Order on Form MC-351, but is missing a Proposed Order to Deposit Funds in Blocked Account on Form MC-355.

Petition (Form MC-350)

Item 3c

Item 3c is filled out to include Defendants names when Item

3b is the box that is marked. Furthermore, according to Attachment 10c, the Settlement Agreement, the defendants should also include AVMGH, LLC. Petitioner shall submit an amended petition clearing choosing either item 3b or 3c, and if 3c is chosen, all Defendants will be listed.

Item 4c. – Persons Involved

Item 4c fails to identify AVMGH, LLC who is identified as a settling defendant in the Settlement Agreement. Petitioner shall submit an amended petition including AVMGH, LLC as a person involved under item 4c before the Court will approve the compromise.

Attachment 11b(6) – Apportionment

Claimant's name is misspelled throughout the attachment. Petitioner shall submit an amended attachment 11b(6) with the correct spelling of Claimant's name.

Proposed Order (Form MC-351)

Item 4 – Defendant

Defendant AVMGH, LLC is missing.

Item 6

Petitioner must either check off a. or b.

Item 9a – Orders Concerning Blocked Accounts

Item 9a requires Petitioner to specify name, branch, and address of each depository, and the amount of each account. Petitioner left it blank.

Conclusion

The Court CONTINUES this hearing to November 20, 2026, at 9:30 a.m. to allow Petitioner to correct the

deficiencies identified in this Order.